

PLE5020: BAR COURSE

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Bar Course

Subject Code

PLE - Professional Legal Education

Course Number

5020

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

Non-standard Duration

Other Course Duration

Semester B (7 weeks - estimated)

Credit Units

2

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Part II Course Details

Abstract

This course aims to build on instruction delivered in the compulsory courses in the PCLL so that, on completion of the Programme, students who have taken this Elective will have the knowledge and skills to complete a range of services that would be undertaken by a pupil barrister in Hong Kong. Essentially, it provides tuition in those of the appropriate benchmarks specified by the Hong Kong Bar Association which have not been covered in the compulsory courses.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Apply drafting principles to draft court documents.		x	x	x
2	Apply court rules in relation to drafting of court documents.		x	x	
3	Apply drafting principles to draft barrister's opinions		x	x	x
4	Describe the general structure of the conference with an expert witness in preparation for a trial.		x	x	
5	Explain the techniques to question expert witnesses in a civil or criminal trial with an understanding of the ethical issues.		x	x	
6	Explain the techniques to question an expert witness in a civil or criminal trial with an understanding of the evidentiary rules and issues.		x	x	
7	Apply the techniques of examining an expert witness to conduct an examination-in-chief of an expert witness in a trial in accordance with court etiquette, procedure and protocol.		x	x	x
8	Apply the techniques of cross-examining an expert witness to conduct a cross-examination of an expert witness in a trial in accordance with court etiquette, procedure and protocol.		x	x	x
9	Describe through observation court etiquette, procedure and protocol in a civil and/or criminal matter		x	x	
10	Apply trial advocacy techniques to conduct a trial in a real courtroom setting in High Court covering a number of advocacy tasks, including: opening submissions, examination-in-chief, cross-examination and closing submissions.		x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	1	Students will gain an overview on how to draft court documents in large group sessions and they will then expand and consolidate their knowledge by drafting these documents in advance and receive feedback in small group sessions and/or written comments on their submissions.	1, 3	
2	2	Students will gain an overview in large group sessions.	2	
3	3	Students will gain an overview on how to conference with a witness in a large group session and they will have a conference with an expert witness and receive feedback in a small group session.	4	
4	4	Students will gain an overview of legal professional ethics in a civil and criminal trial in relation to calling and questioning witnesses in large group sessions	5	
5	5	Students will gain an overview of evidentiary matters concerning questioning of an expert witness in a civil and criminal trial in two large group sessions and they will then expand and consolidate their knowledge by participating in two interactive workshops to practice these skills in these same large group sessions.	6	

6	6	Students will gain an overview on how to conduct examination-in-chief of an expert witness in a large group session and they will then expand and consolidate their knowledge by preparing questions in relation to the examination-in-chief of an expert witness and receive feedback on those questions in a small group session.	7	
7	7	Students will gain an overview on how to conduct a cross-examination of an expert witness in a large group session and they will then expand and consolidate their knowledge by preparing questions in relation to the cross-examination of an expert witness and receive feedback on those questions in a small group session	8	
8	8	Students will participate by attending (1) a supervised High Court; (2) a supervised Magistrates Court visit; as well as (3) an unsupervised District Court visit to gain a deeper knowledge of the inner workings of the different Court levels.	9	
9	9	Students will participate by attending the High Court Trials which is based on the Civil Case file of PLE5052 Trial Advocacy Course to expand and consolidate their knowledge on how a complete trial in court is conducted.	10	

Assessment Tasks / Activities (ATs)

	ATs	CILO No.	Weighting (%)	Remarks ("- for nil entry)	Allow Use of GenAI?
1	Examination-in-chief or cross-examination of an expert in a civil matter	4, 5, 6, 7, 8, 10	25	The use of Generative AI tools is not allowed.	No
2	Examination-in-chief or cross-examination of an expert in a criminal matter	4, 5, 6, 7, 8	25	The use of Generative AI tools is not allowed.	No
3	Students will attend a supervised High Court visit. They will also fill out a questionnaire and be orally examined on what they have completed in their questionnaire and the types of matters they should have learnt about in such a visit.	9	0	The use of Generative AI tools is not allowed.	No
4	Students will attend a supervised Magistrates Court visit. They will also fill out a questionnaire and be orally examined on what they have completed in their questionnaire and the types of matters they should have learnt about in such a visit.	9	0	The use of Generative AI tools is not allowed.	No

5	Students will attend an unsupervised District Court visit. They will also fill out a questionnaire and be orally examined on what they have completed in their questionnaire and the types of matters they should have learnt about in such a visit.	9	0	The use of Generative AI tools is not allowed.	No
6	Students are required to attend and participate in the High Court Trials which is based on the Civil Case file of PLE5052 Trial Advocacy Course.	10	0	The use of Generative AI tools is not allowed.	No

Continuous Assessment (%)

50

Examination (%)

50

Examination Duration (Hours)

4

Minimum Continuous Assessment Passing Requirement (%)

50

Minimum Examination Passing Requirement (%)

50

Additional Information for ATs

4 hour examination on drafting a court document and barrister's opinion (CILO No. 1,2,3). The use of Generative AI tools is not allowed.

Assessment Rubrics (AR)**Assessment Task**

A 4 hour examination on drafting a court document and a barrister' s opinion (Assessment Task 1)

Criterion

To pass this course students must obtain a minimum of 50% for Assessment Task 1 and a minimum total of 50% across both Assessment Task 2 and Assessment Task 3.

Excellent

(A+, A, A-) The work meets the client' s needs in all respects, evidenced by:

- a superior grasp of the issues and subject matter
- good organization
- a capacity to analyze and synthesize
- possession of an extensive knowledge base
- a superior use of lawyers skills

Good

(B+, B, B-) The work meets the client' s needs in most respects, evidenced by:

- a strong grasp of the issues and subject matter
- some critical and analytical ability
- an understanding of the applicable law and procedures
- a good use of lawyer skills

Fair

(C+, C, C-*) The work meets the client' s main needs, evidenced by:

- an adequate grasp of the issues and subject matter
- an ability to develop solutions to the client' s problems
- a basic use of lawyer skills

Marginal

(D*)

Failure

(F) The work does not meet the client' s needs, evidenced by little or an insufficient:

- grasp of the issues and subject matter
- critical and analytical ability
- understanding of the applicable law and procedures

Assessment Task

Examination-in-chief or cross-examination of an expert in a civil matter (Assessment Task 2)

Criterion

To pass this course students must obtain a minimum of 50% for Assessment Task 1 and a minimum total of 50% across both Assessment Task 2 and Assessment Task 3.

Excellent

(A+, A, A-) The work meets the client' s needs in all respects, evidenced by:

- a superior grasp of the issues and subject matter
- good organization
- a capacity to analyze and synthesize
- possession of an extensive knowledge base
- a superior use of lawyers skills

Good

(B+, B, B-) The work meets the client' s needs in most respects, evidenced by:

- a strong grasp of the issues and subject matter
- some critical and analytical ability
- an understanding of the applicable law and procedures
- a good use of lawyer skills

Fair

(C+, C, C-*) The work meets the client' s main needs, evidenced by:

- an adequate grasp of the issues and subject matter
- an ability to develop solutions to the client' s problems

- a basic use of lawyer skills

Marginal

(D*)

Failure

(F) The work does not meet the client' s needs, evidenced by little or an insufficient:

- grasp of the issues and subject matter
 - critical and analytical ability
 - understanding of the applicable law and procedures
-

Assessment Task

Examination-in-chief or cross-examination of an expert in a criminal matter (Assessment Task 3)

Criterion

To pass this course students must obtain a minimum of 50% for Assessment Task 1 and a minimum total of 50% across both Assessment Task 2 and Assessment Task 3.

Excellent

(A+, A, A-) The work meets the client' s needs in all respects, evidenced by:

- a superior grasp of the issues and subject matter
- good organization
- a capacity to analyze and synthesize
- possession of an extensive knowledge base
- a superior use of lawyers skills

Good

(B+, B, B-) The work meets the client' s needs in most respects, evidenced by:

- a strong grasp of the issues and subject matter
- some critical and analytical ability
- an understanding of the applicable law and procedures
- a good use of lawyer skills

Fair

(C+, C, C-*) The work meets the client' s main needs, evidenced by:

- an adequate grasp of the issues and subject matter
- an ability to develop solutions to the client' s problems
- a basic use of lawyer skills

Marginal

(D*)

Failure

(F) The work does not meet the client' s needs, evidenced by little or an insufficient:

- grasp of the issues and subject matter
 - critical and analytical ability
 - understanding of the applicable law and procedures
-

Additional Information for AR

* Note: The University's grades C- and D are not used in the PCLL.

Part III Other Information

Keyword Syllabus

- Court documents
- Barrister's Opinions
- Court rules
- Conferencing with expert witnesses
- Examination-in-Chief and Cross-Examination of expert witnesses
- Evidence, protocol and procedure
- Court visits
- Interpreters
- Conducting a trial in a real courtroom setting

Reading List

Compulsory Readings

Title	
1	Bar Course Desk Book

Additional Readings

Title	
1	Dr Ian Freckelton QC, and Hugh Selby. Expert evidence: law, practice, procedure and advocacy, 7th Edition, Thomson Reuters, 2023
2	Simon So, Law of Evidence in Hong Kong, (2020) Sweet and Maxwell, Asia
3	David Ross QC, Advocacy, 2nd Edition, (2007) Cambridge University Press, Australia
4	Michael Wilkinson, Vandana Rajwani, Raymond Pierce, Advocacy and the Litigation Process in Hong Kong, 4th Edition (2020) Lexis Nexis
5	Erica Beecher-Monas, Evaluating Scientific Evidence. An interdisciplinary Framework for Intellectual Due Process, (2007) Cambridge University Press
6	Roger Eastman and William Rose, Pleading Without Tears: A Guide to Legal Drafting Under the Civil Procedure Rules, 9th Edition, (2017) Oxford University Press